

## **Pretrial matters**

- Approach the bench with a benchbook that includes a copy of the affidavit, all the exhibits, and a copy of ROE
- Movement around the well: May attorneys be presumed to have freedom of the well during arguments and examinations?
- Approach bench, witnesses, and opposing counsels: We would also like to ask for Your Honor's preference of attorneys approaching the bench and witnesses, when should we ask for permission?
- Preference on obj: When sustained, automatically stricken or motion to strike?
- Invoke Rules 603 (all witnesses are constructively sworn in) and 615 (constructive sequestration of all witnesses except for a designated party representative), the party representative for Prosecution/ Defense is xxx.

## **Entering an exhibit into evidence**

### Show the exhibit

"Your honor, permission to approach the opposing counsel with what has been previously marked as exhibit xx?"

"(While walking towards opposing counsel's table) Let the record reflect that I am now showing opposing counsel a copy of exhibit xx"

### Lay foundation of the exhibit

"Your honor, permission to approach the witness with a copy of exhibit xx."

"Mr/ Ms..., if I were to show you a copy of (exhibit's name), would you be able to recognize it?"

(Confirm the end of each affidavit/report for each witness' knowledge)

"Is this a fair and accurate copy of (exhibit's name)?"

"Has this been changed or altered in any way since the last time you saw it?"

### Offer the exhibit into evidence

"Your honor, at this time, the prosecution/plaintiff/defense offers exhibit xx into evidence."

"Your honor, permission to disclose exhibit xx to the members of the jury."

"Your honor, permission to retrieve exhibit xx from the witness."

## **Tendering a witness as an expert witness**

### Foundation

702a: educational background & work experience

702b: facts and evidence

702c: reliable method

702d: reliably applied to this case

"Your honor, at this time, we would like to tender xxx as an expert witness in terms of xxx"

## **Speculation**

Definition: The witness is speculating other's state of mind.

How to argue against: rationally based perception/ sensory perception

**More of Rule 602, not Speculation**

Lack of personal knowledge: the witness can't/ don't know sth not related to state of mind

Lack of foundation: the witness can/ do know, but hasn't shown that they have the knowledge

### **Improper character evidence**

Definition: evidence of a witness' character or character trait cannot be admissible to prove action in conformity therewith

How to argue against: does not show propensity/ action in conformity therewith

### **Hearsay**

Definition: an out of court statement offered for the truth of the matter asserted

Exceptions (are hearsay, but admissible):

1. Present sense impression: "this bottle of water is a bit cold"
2. Excited utterance: (angrily) "I'm gonna kill him!"
3. Then-existing mental/ emotional/ physical state: "You know what, I plan to rob the bank today"
4. Medical diagnosis: "I told my doctor that I was having hallucinations"

Statements that are not hearsay:

1. Offered for effect on the listener: "She said I'm an idiot, so I was super angry"
2. Offered for subsequent actions: "That women said the suspect was in yellow, so the police looked for people in yellow"
3. Rule 801 (d)(2) Opposing Party Statement: statements of the **opposing** party representative are not hearsay

### **Substantially more prejudicial than probative**

How to argue: inflames the passion of the jury, prejudicial value substantially outweighs probative value

How to argue against: high bar, opposing counsel has to prove to you that prejudicial value substantially outweighs probative value

### **Impeachment**

Ask the question again.

(If insist on the wrong answer) We would like to show the opposing witness a copy of their affidavit.

(Show the opposing counsels, Judges, and then the witness the affidavit)

**There should not be any annotations or highlights in the affidavit used for impeachment!!!**

Is this a fair and accurate copy of your affidavit? Is this your signature at the end of this affidavit? You have taken the oath to tell the truth and nothing but the truth, is that correct?

Now let me direct your attention to Line xxx. I'll read it out loud while you read it silently.

Now let me ask the question again...

### **Demeanor in court**

Captain says "All rise" when the judge enters the court, and say "Good day/ morning/ afternoon, your honor" together

Always say "Yes, your honor" after the judge gives you an answer or gives a ruling

Always stand up when talking to the judge

Don't say sorry, say "May I ask for the court's indulgence and xxx"

Do not show attitude (facial expressions or unsatisfactory behaviors) towards rulings

Do not argue after ruling has been made